

25PSCV02182 25PSCV02182

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-13

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JPMorgan Chase Bank N.A. v. Siqi

Liu, Case No. 25PSCV02182

ORDER ON MOTION

TO DEEM FACTS ADMITTED

Plaintiff JPMorgan Chase Bank,

N.A.'s Motion for Admission of Truth of Facts to be Deemed Admitted is granted.

Background

This is a breach of contract case. Plaintiff

JPMorgan Chase Bank ("Plaintiff") alleges as follows:

On or about April 8, 2015, an agreement was made between Plaintiff and Defendant Siqi Liu ("Defendant"). (Compl., BC-1.) On May 31, 2024, Defendant breach the agreement by failing to make payments as agreed and continuing to refuse to pay. (Id. at BC-2.) Defendant is in default and Plaintiff is entitled ot the unpaid balance. (Id.)

On June 16, 2025, Plaintiff filed a complaint alleging one cause of action against Defendant for breach of contract.

Pending before the Court is Plaintiff's Motion for Admission of Truth of Facts be Deemed Admitted. No opposition has been filed.

Legal Standard

“Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” (Code Civ. Proc., § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Discussion

Plaintiff moves for an order to deem as admitted the Requests for Admissions, Set One (“RFAs”). As set forth in the Declaration of Brian Langedyk, Plaintiff served its RFAs on April 18, 2026 and as of the filing of the instant motion, Plaintiff has not received a response. (Langedyk Decl., ¶¶ 2-3, Ex. 1.)

The motion is granted.

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court R. 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

However, here, Defendant has not requested sanctions. Accordingly, the Court will not impose sanctions.

Conclusion

Based on the foregoing, Plaintiff JPMorgan Chase Bank, N.A.'s Motion for Admission of Truth of Facts to be Deemed Admitted is granted.